

and the court will set aside the Entry of Default.

Disposition

Defendant's Motion to Set Aside is granted.

Defendant to file Answer within 10 days.

Defendant to file Order.

6. 9:00 AM CASE NUMBER: L25-03768
CASE NAME: LEYTON USA, INC. VS. HSG RESTAURANT GROUP
*HEARING ON MOTION IN RE: TO STRIKE ANSWER TO COMPLAINT
FILED BY: LEYTON USA, INC.

TENTATIVE RULING:

Background

Plaintiff has filed a Motion to Strike Defendant's Answer, on the ground that Defendant, a corporation, filed its answer *in propria persona*.

Plaintiff attached an exhibit reflected an attempt to meet and confer with the Defendant.

The Motion was properly noticed.

The Motion is unopposed.

Analysis

A court can strike any portion of a pleading that is not drawn or filed in conformity with the laws of the state. *CCP Section 436(b)*.

A corporation cannot appear in a civil action through a corporate officer or employee who is not an attorney. *Merco v. Construction Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724.

Courts must liberally grant parties the opportunity to amend a pleading in the event the entire pleading is stricken. *CCP 472a(d)*, *Vaccaro v. Kaiman* (1998) 63 CA4th 761, 768-769. "When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend." *Id.*

In the instant matter, the Defendant's Answer does not reflect that it was filed by an attorney. Though the Answer is signed, the caption of the Answer, where attorneys must indicate that they are acting on behalf of a party, is blank. The court is left to infer that the corporation is self-represented, which is not permitted.

However, this flaw appears to be one which the Defendant can easily remedy by procuring counsel.

Disposition

Plaintiff's Motion to Strike the entire Answer is granted.

Plaintiff's request for Entry of Default is denied.

Defendant will have 10 days from the date of this Order to file an amended Answer.

Plaintiff to file Order.

7. 9:00 AM CASE NUMBER: L25-04442

CASE NAME: CAPITAL ONE N.A. VS. JAY POOVAKAN

*HEARING ON MOTION IN RE:

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

However, Plaintiff apparently mailed notice of this Motion to Defendant at an address which has not been verified in any fashion. Defendant was not served with process, so the court cannot compare the two addresses, and the Defendant has not filed any documents with the court.

The document purportedly signed by Defendant, a stipulation filed by Plaintiff on 7/22/25, does not provide an address for the Defendant.

Disposition

This Motion will be continued to 7/7/26, 9am.

Plaintiff must serve Defendant with notice and a copy of the Motion.

Plaintiff must file the Order.

8. 9:00 AM CASE NUMBER: L25-04535

CASE NAME: CAPITAL ONE N.A. VS. KHADIJA BRYANT

*HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION